

Case :- WRIT - C No. - 8158 of 2024

Petitioner :- Gudiya Alias Sapna And 3 Others

Respondent :- State Of U.P. Thru. Prin. Secy. Addl. Sources Of Energy And 5 Others

Counsel for Petitioner :- Piyush Asthana

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Subhash Vidyarthi, J.

1. Heard the learned counsel for the petitioners and Ms. Aprajita Bansal, learned counsel appearing on behalf of the opposite party Nos.2 to 5.

2. This petition has been filed with the following main prayer:-

"To issue Writ, Order or Direction in the nature of Mandamus thereby commanding the opposite party no. 2 to 5 either to restore the earlier electricity connection whose account no. was 8074218045 forthwith or provide new electricity connection to the petitioners immediately without insisting for No Objection Certificate of opposite party no. 6."

3. It is the case of the petitioners that the petitioner No.2's mother Geeta Devi alias Jagga Devi used to reside in a house constructed by the opposite party No.6 as a licensee. The opposite party No.6 had given the premises to the petitioner No.2's mother by way of an affidavit creating such license, a copy of which has been filed as Annexure 3 to the petition. However, the opposite party No.6 changed his mind and later on mentioned in the said affidavit that the right to live in the premises in question shall be available only to Smt. Jagga Devi-mother of the petitioner No.2 during her lifetime. The mother of the petitioner No.2 died on 20.12.2023.

4. The opposite party No.6 threatened the petitioner No.2 to vacate the premises. He then submitted some applications to the opposite party no.2 to 5 on the basis whereof the electricity connection that was earlier being enjoyed by the petitioner and its family had been disconnected. The petitioner No.2 has applied for a new connection before the authorities on 12.08.2024 and completed all formalities, however, the respondent No.5 has informed the petitioner to provide No Objection Certificate from the title holder of the property. The opposite party No.6, who is the title holder of the property, has denied to give No Objection Certificate. Hence, this petition has

been filed with the aforesaid prayer.

5. Learned counsel for the opposite party Nos.2 to 5 has stated that under the Rules framed under the Electricity Act 2003 and para 4.4 of the Electricity Supply Code, 2005, the distribution licensee i.e. the respondent Nos.2 to 5 cannot give electricity connection without No Objection Certificate of the owner of the premises.

6. This petition cannot be entertained as the learned counsel for the petitioners has failed to show any legal right which is subsisting with the petitioners for this Court to issue a writ of mandamus to the respondents to act against the law.

7. Accordingly, the writ petition stands ***dismissed***.

Order Date :- 21.9.2024

-Amit K-